

		improvement project, Environmental entered into a subcontract dated August 4, 2020, with Tot Lot Pros for the installation of the playground equipment, surfacing, and related components, including work performed in and around the ramp area where Plaintiff alleges he fell. Further, Environmental contends that under Section 11 of the subcontract, Tot Lot Pros is required to indemnify, defend, and hold harmless Environmental and the City of Newport Beach from all claims, liabilities, damages, and expenses arising out of or connected with its work. Therefore, the court finds that interests of justice weigh in favor of granting the motion for leave to file a cross-complaint against Tot Lot Pros. Environmental is to file the proposed Cross-Complaint, attached to the Motion, without any changes, modifications, or alterations, within 7 days of the date of the hearing. Moving party is to give notice.
7	24-01406771 <i>Simpson vs. FCA US, LLC</i>	1) Motion to Compel Answers to Special Interrogatories 2) Motion to Compel Production 3) Motion to Deem Facts Admitted The following motions are DENIED: 1. Plaintiffs' Motion to Compel Production (ROA 45) 2. Plaintiffs' Motion to Deem Answers Admitted (ROA 47) 3. Plaintiffs' Motion to Compel Answers to SPROGs (ROA 48) It is undisputed that Defendant served untimely but substantive responses after the motions were served, rendering the request to compel responses/deem answers admitted moot. However, Plaintiffs maintain their request for sanctions. Defendant asserts that sanctions are unwarranted because counsel for the parties had already reached an agreement in which Defendant would not serve responses to pending discovery in litigation between the two firms unless responses were specifically requested by Plaintiff's counsel. (Hugret Decl., ¶¶ 3-5.) Defendant's counsel declares Plaintiff sent a letter by email on 12/31/25 with a 7-day deadline to respond to the subject discovery (which had been served in August 2024), then filed the present motions on 1/12/26. Defendant promptly served responses on 2/20/26. In the initial motions, Plaintiffs assert the parties' agreement only extended time to respond by 30 days. However, Plaintiffs have not filed a reply brief responding to Defendant's arguments in opposition. Moreover, Plaintiffs should have engaged in additional meet and confer attempts, such as a phone call to Defendant's counsel, before filing the motions. Defendant has shown it made reasonable efforts to comply with its discovery obligations in the context of the parties' agreement. Therefore, the request for sanctions is denied.